

Jalaluddin v. State of U.P. & 3 Others

Allahabad High Court · Division Bench · 16 July 2014 · 2014 SCC OnLine All 11162 · Criminal Misc. Writ Petition No. 11826 of 2014 · **Writ petition disposed of; FIR not quashed; arrest to comply with s.41(1)(b)/41-A Cr.P.C.**

HEADNOTE

An FIR under Section 135(1)(e) of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed. However, as the s.135 offence does not entail a sentence exceeding seven years, arrest must not be made mechanically: if the accused is to be arrested, the police must comply with Section 41(1)(b) read with Section 41-A Cr.P.C., and any violation may be complained of before the Magistrate. If the offence is compoundable, the accused may seek his remedy under the compounding provisions of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

INTERPLAY · EA2003::135

FIR not quashed; arrest safeguards for a ≤ 7 -year offence; compounding remedy

QUESTION

Should an FIR under s.135 be quashed, and what safeguards attend arrest for such an offence?

HOLDING

The FIR disclosing a cognizable s.135 offence is not quashed. But the offence not entailing a sentence over seven years, arrest cannot be mechanical: the police must comply with s.41(1)(b) read with s.41-A Cr.P.C. if they propose to arrest, and a violation may be raised before the Magistrate. If the offence is compoundable, the accused may seek his remedy under the compounding provisions of the Supply Code, 2005. ¶ (order)

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy For a s.135 electricity-theft offence (≤ 7 years), arrest must follow the s.41(1)(b)/41-A Cr.P.C. safeguards and cannot be mechanical; the accused may compound under the Supply Code. ¶ (order)